

STATE OF NEW YORK

9111--B

2025-2026 Regular Sessions

IN ASSEMBLY

September 26, 2025

Introduced by M. of A. GALLAGHER, KELLES, TAPIA, VALDEZ, SHRESTHA, SCHIAVONI, LEVENBERG, R. CARROLL, SIMON, FORREST, ROSENTHAL, LASHER, RAGA, MITAYNES, SHIMSKY, CUNNINGHAM, SEAWRIGHT, BORES, STECK, COLTON, GLICK, MORENO, REYES, TAYLOR, RAMOS -- read once and referred to the Committee on Energy -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Energy in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law and the executive law, in relation to portable solar generation devices

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Solar Up Now NY Act".
3 § 2. Paragraph (d) of subdivision 1 of section 66-j of the public
4 service law, as amended by chapter 253 of the laws of 2013, is amended
5 and a new paragraph (j) is added to subdivision 1 to read as follows:
6 (d) "Solar electric generating equipment" means a photovoltaic system
7 (i) (A) in the case of a residential customer (other than a farm utiliz-
8 ing a residential meter), with a rated capacity of not more than twen-
9 ty-five kilowatts; (B) in the case of a customer who owns or operates a
10 farm operation as such term is defined in subdivision eleven of section
11 three hundred one of the agriculture and markets law utilizing a resi-
12 dential meter with a rated capacity of not more than one hundred kilo-
13 watts; and (C) in the case of a non-residential customer, with a rated
14 capacity of not more than two thousand kilowatts; and (ii) that is manu-
15 factured, installed, and operated in accordance with applicable govern-
16 ment and industry standards, that is connected to the electric system
17 and operated in conjunction with an electric corporation's transmission
18 and distribution facilities, and that is operated in compliance with any

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13786-08-6

standards and requirements established under this section. Solar electric generating equipment shall not include a portable solar generation device.

(j) "Portable solar generation device" means a photovoltaic system and associated equipment that:

(i) is designed to be connected to a building's electrical system through a standard electrical outlet;

(ii) is limited to supplying a maximum aggregate continuous AC inverter nameplate output of not more than one thousand two hundred watts per utility account to the utility electric grid;

(iii) is listed or certified by underwriters laboratories or another nationally recognized testing laboratory either: (A) as a complete plug-in photovoltaic system to a standard such as UL 3700 or any successor or equivalent standard; or (B) to a combination of standards that together evaluate plug-in photovoltaic system safety and utility-interactive inverter performance for grid-parallel operation and anti-islanding protections; and

(iv) is installed and operated in accordance with the New York state fire prevention and building code and manufacturer instructions.

§ 3. Subdivision 7 of section 66-j of the public service law is renumbered subdivision 8 and a new subdivision 7 is added to read as follows:

7. Portable solar generation device. Notwithstanding any other provision of law, unless the owner of a portable solar generation device shall choose to voluntarily enter into an interconnection or net metering agreement:

(a) A portable solar generation device shall not be subject to interconnection or net metering requirements. Any energy exported to the utility electric grid shall be uncompensated unless the customer voluntarily enters a net metering or other compensation agreement.

(b) An electric corporation may not require a customer using a portable solar generation device to:

(i) obtain the electric corporation's approval before installing or using the device;

(ii) pay any fee or charge related to the device or for feeding energy back into the utility electric grid; or

(iii) install any additional controls or equipment beyond what is integrated into the device.

(c) An electric corporation shall not be liable for any damage or injury caused by a portable solar generation device.

(d) Within thirty days of installing a portable solar generation device, the owner of such device shall notify the electric corporation serving the building in which such device will be installed. Within thirty days of the effective date of this subdivision, every electric corporation shall develop and make available on the electric corporation's website a simple notification form, which shall require only the following information:

(i) the customer's name and contact information;

(ii) the service address and utility account number associated with the address at which the device will be installed;

(iii) the device make and model; and

(iv) the device rated size.

§ 4. Section 378 of the executive law is amended by adding a new subdivision 21 to read as follows:

21. Within one year of the effective date of this subdivision, irrespective of any system standard established by any testing laboratory, the state uniform fire prevention and building code shall be optimized

1 to allow for portable solar generation devices, as defined in section
2 sixty-six-j of the public service law, to be connected to a building's
3 wiring through an electrical outlet. For devices smaller than a thresh-
4 old of no less than three hundred ninety-one watts, the code shall not
5 require any changes to the building's premises wiring.

6 § 5. This act shall take effect immediately.